

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

LOGFRET, INC., *Complainant*

v.

KIRSHA, B.V., LEENDERT JOHANNES BERGWERFF A/K/A
HANS BERGWERFF, AND LINDA SIEVAL, *Respondents*.

DOCKET NO. 18-10

Served: October 28, 2019

BEFORE: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER TO SUPPLEMENT PETITION FOR ATTORNEY FEES

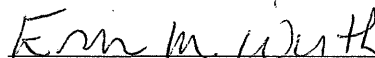
On October 23, 2019, Respondents filed a petition seeking attorney fees and a motion for confidential treatment in this proceeding, which became administratively final on October 21, 2019.

On March 1, 2016, the Commission amended its Rules of Practice and Procedure governing the award of attorney fees in Shipping Act complaint proceedings in order to implement the statutory amendments made by the Howard Coble Coast Guard and Maritime Transportation Act of 2014, Pub. L. No. 113-282, § 402, 128 Stat. 3022 (Dec. 18, 2014). The parties are encouraged to review the final attorney fees rule in FMC Docket No. 15-06, Commission cases implementing the rule such as *Edaf Antillas, Inc. v. Crowley Caribbean Logistics*, 34 S.R.R. 439 (FMC 2016) and *Baltic Auto Shipping Inc. v. Hitrinov*, 34 S.R.R. 944 (FMC 2017), and relevant federal caselaw.

Respondents are granted additional time to supplement their petition to address their eligibility and entitlement to attorney fees under the revised Commission rules. Respondents should also indicate the number of years out of law school for all attorneys, number of years of experience for any paralegals who worked on the proceeding, and whether the fees charged for anyone changed over the course of the proceeding.

Complainant should also address the eligibility and entitlement to attorney fees under the revised Commission rules and relevant caselaw. Complainant's time to respond will not begin to run until the deadline for Respondents' supplement.

For the reasons stated above, it is hereby **ORDERED** that Respondents may file a supplement to their attorney fees petition by November 7, 2019. Complainant should file its reply to the petition by November 27, 2019.


Erin M. Wirth
Chief Administrative Law Judge